



POLICE DEPARTMENT

August 8, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202401509 (Incident Date: February 13, 2024) regarding Police Officer Luigi Scalici, Tax No. 970844 (PODS Case No. C-034698)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202401509, pertaining to Police Officer Luigi Scalici. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, Officer Scalici and his partner conducted a vehicle stop. As part of the stop, Officer Scalici frisked and searched the individual and searched the individual's car. Subsequently, the officers exercised their discretion and concluded the stop with a warning. Officer Scalici prepared a Stop Report where he included the basis for conducting the frisk and search of the individual. In it, he had written that, in addition to his observations, he frisked the individual because the individual "was known to carry weapons." However, when interviewed by the CCRB, Officer Scalici indicated that he did not have prior knowledge of the individual and that he had meant that the individual was known "by the Department" due to his prior weapons charges. The CCRB substantiated a sole allegation against Officer Scalici – that he made a false official statement when he included that language in the Stop Report.

Administrative Guide 304-10 defines a false statement as an "intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made." This was not the case here. Officer Scalici let the individual go with a warning and took no further enforcement action. Furthermore, his observations alone were sufficient to justify the actions he took.

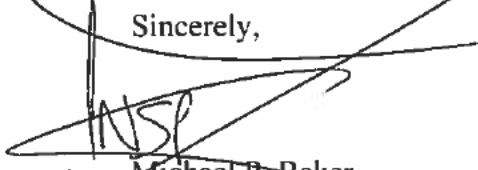
For these reasons, after considering the evidence and the totality of the circumstances, the Police Commissioner finds that Officer Scalici did not make a false official statement. Rather, Officer Scalici's actions were more akin to making an inaccurate statement, defined in A.G. 304-10 as a "statement that a member of the service knows, or should know, includes incorrect material information."

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Officer Scalici has no formal disciplinary history and, at the time of the substantiation of this allegation, had no prior substantiated CCRB allegations. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends issue no disciplinary action for the allegation that he provided a false official statement against an individual. However, the Police Commissioner intends to direct the issuance of a Schedule "B" Command Discipline with a penalty of five (5) vacation days for failing to make an accurate entry in a Department record.

Sincerely,

for  *INS*

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

August 12, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202401509 (Incident Date: February 13, 2024) regarding Police Officer Luigi Scalici, Tax No. 970844 (PODS Case No. C-034698)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated August 8, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications pertaining to Police Officer Luigi Scalici for providing a false official statement. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter referred to as “CCRB”), I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s letter states that after analyzing the facts and circumstances of this matter, you determined that Officer Scalici did not make a false official statement when he wrote in a Stop Report that a civilian “was known to carry weapons,” even though he later admitted that he did not have prior knowledge of the person at the time he frisked and searched the civilian (see August 8 Letter from Deputy Chief Baker, pg. 1). Consequently, you concluded that you would retain jurisdiction and direct the issuance of a Schedule “B” Command Discipline with a penalty of five (5) vacation days for failing to make an accurate entry in a Department record.

We disagree with your determination that Officer Scalici did not intentionally make a false statement. A civilian filed a complaint against Officer Scalici after he stopped the civilian for failing to signal and then subsequently frisked him, searched him, and searched his car. In an official, NYPD Stop Report, Officer Scalici described the incident and wrote: “Upon approach of vehicle officers were unable to see the individual’s hands and did recognize individual to be known to carry weapons from prior encounters.” Later in the report, Officer Scalici stated that he frisked the civilian because “he [was] known to carry weapons.” With respect to Officer Scalici’s observations during the incident, he noted that the civilian had leaned towards the center console and reached for a “silver object.” Even though Officer Scalici repeatedly relied on the civilian’s history of possessing weapons in order to justify the law enforcement activity, he later admitted in a CCRB interview that neither he nor his partner had recognized the civilian. In fact, Officer Scalici stated that the civilian’s reputation within the Department only became known to him as he was drafting the Stop Report the day after the incident.

Patrol Guide Procedure 203-08 defines a false official statement as “an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” Officer Scalici admitted in his interview that he did not recognize the civilian at the time of the stop and only learned that he was a person known to the Department after the stop had concluded. Therefore, there is sufficient evidence to suggest that Officer Scalici intentionally made a materially false statement when he explicitly stated in the Stop Report that the basis of the frisk was the officers’ knowledge that the “suspect [was] known to carry weapons.” Indeed, that false statement is particularly concerning because it suggests that Officer Scalici intended to bolster an otherwise weak justification for the frisk. Finally, the fact that Officer Scalici ultimately let the civilian go with a warning is of no moment. The heart of the matter is that Officer Scalici knowingly made a false statement on NYPD paperwork that should have accurately recorded his investigative actions, in part so that the legality of those actions could be assessed.

Based upon the foregoing, it is respectfully requested that the NYPD serve Charges and Specifications upon Officer Scalici and permit the disciplinary process to proceed.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

NYC Civilian Complaint Review Board



POLICE DEPARTMENT

August 13, 2025

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Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
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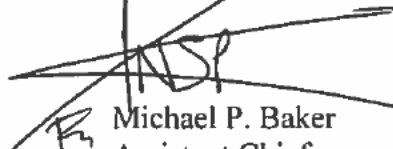
Re: CCRB Case No. 202401509 (Incident Date: February 13, 2024) regarding Police Officer Luigi Scalici, Tax No. 970844 (PODS Case No. C-034698)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 12, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Luigi Scalici, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Scalici for the reasons expressed in my August 8, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days for violating Administrative Guide Procedure 304-05 (4) (Performance on Duty/Accurate Entries in Department Records), and no disciplinary action for the alleged violation of Administrative Guide Procedure 304-10 (False or Misleading Statements).

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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